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April 8, 2025

ENGROSSED HOUSE
BILL NO. 1276

By: Caldwell (Chad), Lowe
(Dick), Moore, and Burns of
the House

and

Seifried of the Senate

An Act relating to schools; requiring district boards of education to adopt a policy prohibiting student cell phone and personal electronic device use under certain circumstances; requiring exceptions for emergencies; allowing board approval to opt out of prohibition; requiring annual approval of alternative policies; defining terms; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 24-162 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Before the start of the 2025-2026 school year, each school district board of education shall adopt a policy to prohibit the use of cell phones and personal electronic devices by students enrolled in the district during the entirety of the school day and while present on school grounds.

1 B. District policies described in subsection A of this section
2 shall incorporate provisions for emergency use including, but not
3 limited to, use to support medical issues documented by a licensed
4 medical professional.

5 C. Notwithstanding subsection A of this section, a school
6 district board of education may vote to adopt a policy allowing
7 student cell phone or personal electronic device usage during the
8 school day. Any such policy shall be reviewed and approved by the
9 district board on an annual basis.

10 D. For purposes of this section:

11 1. "Cell phone" means a portable wireless telephone device that
12 is designed to send or receive transmissions through a cellular
13 radiotelephone service;

14 2. "Personal electronic device" means any personal device
15 capable of connecting to a smart phone, the Internet, a cellular or
16 Wi-Fi network, or directly connecting to another similar device.
17 Personal electronic devices include, but are not limited to, smart
18 watches, smart headphones, laptops, tablets, and smart glasses.
19 Personal electronic devices shall not include devices that are
20 school-issued or school-approved and specifically limited for use in
21 classroom instruction; and

22 3. "School day" means the entirety of the day, from the first
23 bell indicating the beginning of classroom instruction through the
24 final bell indicating the end of classroom instruction.

1 SECTION 2. This act shall become effective July 1, 2025.

2 SECTION 3. It being immediately necessary for the preservation
3 of the public peace, health or safety, an emergency is hereby
4 declared to exist, by reason whereof this act shall take effect and
5 be in full force from and after its passage and approval.

6 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
7 April 8, 2025 - DO PASS
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